

7.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF WITNESS KARINA VEGA, AND FOR MONETARY SANCTIONS AGAINST DEFENDANT CVUSD, AND/OR ATTORNEY RANDALL WINE; AND TO PREVENT CVUSD'S ATTORNEY FROM REPRESENTING MS. VEGA DUE TO A CONFLICT OF INTEREST

Tentative Ruling: Any party may obtain discovery by taking the deposition of any person, including a party to the action. (CCP § 2025.010.) Pursuant to Cal. Code Civ. Pro. §2025.480(a), if a deponent fails to answer any questions, the party seeking discovery may move the court an order compelling the answer. If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition. (CCP §2025.480(i).) The deponent has the burden of justifying the refusal to answer deposition questions. (*Warford v. Medeiros* (1984) 160 Cal. App. 3d 1035, 1045.)

Here, there are essentially three questions at issue, although some questions were asked multiple times: (1) whether Vega was ever disciplined for referring Plaintiff and her son to the Latino Commission; (2) whether Vega was ever disciplined for referring any other District employee to the Latino Commission; and (3) whether Vega has any plans to file a grievance with the union related to Plaintiff's case. In response to each of these questions, the District objected on grounds of privacy and instructed Vega not to answer.

Generally, it is improper for counsel to instruct a witness not to answer a deposition question, although such an instruction is proper based on an objection on grounds of privilege, trade secrets or privacy. (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013.) Since the District objected on grounds that the information invades Vega's right to privacy, the instruction not to answer was proper.

The right to privacy is protected by the California Constitution. (Cal. Const. Art. 1, §1.) However, unlike a privilege, the privacy protection is qualified and disclosure may occur to serve a "compelling state interest." (*Britt v. Superior Court* (1978) 20 Cal. 3d 844, 855-856.) Thus, when a privacy right is implicated, the court must carefully balance the right of privacy against the need for discovery. (*Ibid.*) Disclosure of personal information can be compelled only if the information is directly relevant and essential to a fair resolution of the action. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1431-1432.) Even where the balance weighs in favor of disclosure of private information, the scope of the disclosure must be narrowly circumscribed and is permitted only the extent necessary for a fair resolution of the lawsuit. (*Britt, supra*, 20 Cal. 3d. at 859.) "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is

serious. The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. (*Williams v. Superior Court* (2017) 3 Cal. 5th 531, 552.)

Employment records are generally covered by the constitutional right of privacy. (*Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 528.) Generally, the public interest in preserving confidential personnel information outweighs a private litigant's interest in obtaining that information. (*Life Technologies Corp. v. Superior Court* (2011) 197 Cal. App.4th 640, 652.) "Even when the balance does weigh in favor of disclosure, the scope of the disclosure must be narrowly circumscribed." (Id.)

Plaintiff argues that the testimony at issue is necessary to show the District's motives for the criminal fraud investigation. The District asserts that the testimony is irrelevant since the fraud allegations were not based on the referral to the Latino Commission, but rather on Plaintiff's use of the District's contract with the Latino Commission to pay for the services for her son who was not a District student. Plaintiff asserts that evidence of disciplinary action against Ms. Vega would show that the District intended to make Vega the fall guy for the retaliatory investigation. While this is arguably sufficient to establish the need for discovery of disciplinary action in regards to Vega's referral of Plaintiff's son, it does not outweigh the privacy interests of Vega and other parties regarding disciplinary actions for other referrals or whether Vega considered filing a complaint or grievance against the District for any such discipline.

Plaintiff argues that the District may not assert Vega's privacy right on her behalf, and therefore, Vega was required to file her own opposition to the Motion to Compel. Plaintiff relies on *Hendrickson v. California Newspapers, Inc.* (1975) 48 Cal. App. 3d 59, which states that "[i]f it is well settled that the right of privacy is purely a personal one; it cannot be asserted by anyone other than the person whose privacy has been invaded, that is, plaintiff must plead and prove that *his* privacy has been invaded." (Id at 62; emphasis in original.) However, *Hendrickson* involved an action for invasion of privacy rather than a discovery dispute. Courts frequently allow a party to an action to assert a privacy objection to protect the rights of third parties. For example, in *Williams, supra*, 3 Cal. 5th 531, an employer asserted that a PAGA plaintiff's special interrogatories seeking contact information for all aggrieved employees was an invasion of the privacy of the employees. (Id at 542.) Likewise, in *Harding Lawson Associates v. Superior Court* (1992) 10 Cal. App. 4th 7 (disapproved on other grounds by *Williams, supra*) the court allowed the employer to assert privacy rights on behalf of third-party employees and determined that the need for discovery did not outweigh the employees' right to privacy in their personnel files. (Id at 10.)

Pursuant to CCP § 2025.480, the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel a deposition answer unless the party subject to the sanction acted with substantial justification or other circumstances make the imposition unjust. Here, neither party was entirely unsuccessful. Because each party was meritorious as to some of the questions at issue, both briefs were substantially justified.

Disqualification of Attorney Randall Winet:

A trial court may order disqualification of an attorney pursuant to CCP § 128(a)(5).) “Ultimately, disqualification motions involve a conflict between the clients' right to counsel of their choice and the need to maintain ethical standards of professional responsibility.” (*Neal v. Health Net, Inc.* (2002) 100 Cal. App. 4th 831, 840.) Disqualification is proper only when it is necessary to prevent a substantial and continuing effect on future judicial proceedings. (*Gregori v. Bank of America* (1989) 207 Cal. App. 3d 291, 309.) Standing is implicit in a disqualification motion. (*Jarvis v. Jarvis* (2019) 33 Cal.App.5th 113, 131.) A party moving to disqualify counsel must show a legally cognizable interest that is or would be harmed by the attorney’s conflict of interest. This means that, except in limited circumstances, a party seeking disqualification must have or have had an attorney-client relationship with the “target” attorney, as to hold otherwise would permit exploitation of the disqualification motion as a litigation tactic. (Vapnek, et al., Cal. Practice Guide: Professional Responsibility & Liability (The Rutter Group 2024), ¶ 4:322.10, citing *Great Lakes Const., Inc. v. Burman* (2010) 186 Cal. App.4th 1347, 1356-1359; *Marriage of Murchison* (2016) 245 Cal.App.4th 847, 851.) Exceptions to the attorney-client relationship include the existence of a confidential relationship with a nonclient; a close relationship between the nonclient and client, such as close familial relationships; or a nonclient with a personal stake in the motion. (Cal. Prac. Guide: Prof. Resp. & Liab., *supra*, ¶ 4.322.11.) In this case, Plaintiff does not have standing to bring the instant motion because she did not have a confidential or close relationship with Attorney Winet, and does not have a personal stake in the motion. Moreover, the alleged conflict of interest appears to be entirely speculative. Ms. Vega was deposed as an employee of the District and may be represented by the District’s counsel for the purpose of the deposition.

Plaintiff’s Evidentiary Objections 1-5 SUSTAINED.

Motion to Compel Further Deposition Testimony of Witness Karina Vega GRANTED in PART.

Karina Vega shall appear for deposition and respond, without objection, to questions regarding whether CVUSD disciplined, reprimanded or admonished Ms. Vega, regarding her actions in relation to referring Ms. Carrera and Ms. Carrera’s minor son to the Latino Commission.

Request for Sanctions DENIED.

Motion to Prevent CVUSD’s Attorney Randall Winet from Representing Ms. Vega DENIED.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2501702	CARRERA VS GONZALEZ	MOTION FOR PROTECTIVE ORDER

Tentative Ruling: The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may